

Intermodal Motor Carriers Conference, et al.

v.

Ocean Carrier Equipment Management Association, Inc., et al.

FMC Docket No. 20-14

Respondents' Statement of Material Facts

Public Version – Confidential Materials Excluded

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK A/S,
MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
OCEAN NETWORK EXPRESS PTE. LTD., WAN HAI
LINES LTD., YANG MING MARINE TRANSPORT
CORP., AND ZIM INTEGRATED SHIPPING
SERVICES,

Respondents.

FMC Docket No. 20-14

**RESPONDENTS' STATEMENT OF MATERIAL
FACTS PURSUANT TO 46 C.F.R. § 502.70(a)**

Respondents, Ocean Carrier Equipment Management Association, Inc. ("OCEMA"), Consolidated Chassis Management, LLC ("CCM"), CMA CGM S.A. ("CMA"), COSCO Shipping Lines Co. Ltd. ("COSCO"), Evergreen Line Joint Service Agreement, FMC No. 011982 ("Evergreen"), Hapag-Lloyd AG ("Hapag-Lloyd"), HMM Co. Ltd. ("HMM"), Maersk A/S ("Maersk"), MSC Mediterranean Shipping Company S.A. ("MSC"), Ocean Network Express Pte. Ltd. ("ONE"), Wan Hai Lines Ltd. ("Wan Hai"), Yang Ming Marine Transport Corp. ("Yang Ming"), and ZIM Integrated Shipping Services ("ZIM") (collectively, "Respondents") respectfully submit this Statement of Material Facts pursuant to 46 C.F.R.

§502.70(a) in support of their Motion for Summary Judgment dismissing the Complaint as to all Respondents.

MATERIAL FACTS NOT IN DISPUTE

Complainant

1. Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) is a conference of the American Trucking Associations, Inc. (“ATA”), a District of Columbia Corporation. Its business address is 950 North Glebe Road, Suite 210, Arlington, VA 22203. (STIP #1)¹

2. The IMCC’s membership includes ATA member companies engaged in the intermodal transportation of property who engage in the interchange of chassis in order to transport the Respondents’ ocean containers. (STIP #2)

3. The Board of Directors of IMCC for 2020-2021 included owners and/or officers of the following motor carriers:

- a. Devine Intermodal (“Devine”)
- b. Triple G Express Inc. (“Triple G”)
- c. Best Transportation Inc. (“Best Transportation”)
- d. Reliable Transportation Specialists, Inc. (“Reliable”)
- e. Ability Tri-Modal Transportation Services (“Ability Tri-Modal”) (IMCC Answers, No. 3)²

¹ “STIP #__” refers to the Stipulations Pursuant to 46 C.F.R. §502.207. A Confidential Restricted Version was transmitted to Judge Wirth, and a redacted Public Version was filed with the FMC, on February 28, 2022.

² “IMCC Answers, No. __” refers to the answers to interrogatories in Complainant’s Responses and Objections to Respondents’ First Set of Interrogatories and Request for Production of Documents dated April 7, 2021, a copy of which is appended to the Appendix as Exhibit 1.

4. The Executive Committee of IMCC for 2020-2021 included owners and/or officers of the following motor carriers:

- a. The Evans Network of Companies (“Evans”)
- b. Intermodal Cartage Company (“IMC”)
- c. Container Port Group (“CPG”)
- d. TCW, Inc. (“TCW”) (IMCC Answers, no. 3)

NACPC and Its Owners

5. North American Chassis Pool Cooperative, LLC (“NACPC”) is an enterprise that has leased and rented chassis as an IEP. (STIP #191).

6. NACPC was formed by eleven motor carriers (NACPC.org/members; Manning Dep., p. 28; Chris Giltz Dep., p. 92; Mark George Dep., p. 99) (APP0063-APP0067; APP0073; APP0149; APP0174).

7. Devine Intermodal is a motor carrier engaged in intermodal trucking, warehousing and logistics (devineintermodal.com) that is an owner of NACPC. (Manning Dep., p. 28; Mark George Dep., Exh. 28) (APP0073; APP0231-APP0233).

8. Triple G is a motor carrier engaged in intermodal trucking (triplelexpress.com) that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084; APP0231-APP0233).

9. Best Transportation is a motor carrier engaged in intermodal trucking, transloading and warehousing (besttrans.com) that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084; APP0231-APP0233).

10. Reliable is a motor carrier that specializes in intermodal drayage (reliabletrans.com) that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084 ; APP0231-APP0233).

11. Ability Tri-Modal is a motor carrier engaged in third party transportation, logistics, warehousing and distribution services (abilitytrimodal.com/our-mission), that is an owner of NACPC. (Manning Dep., p. 126; Mark George Dep., Exh. 28) (APP0084; APP0231-APP0233).

12. Evans is a motor carrier engaged in business as an intermodal drayage provider. (theenoc.com/about) Evans became an owner of NACPC after it was formed (Giltz Dep., p. 92; 94) (APP0149-APP0150) but sold back its shares to the company in 2020 (Giltz Dep., p. 95-6) (APP0151-APP0152).

13. IMC is a motor carrier engaged in the marine drayage business (Mark George Dep., p. 15) that is an owner of NACPC. (Mark George Dep., p. 100; Exh. 28) (APP0175; APP0231-APP0233).

14. CPG is a motor carrier engaged in the business of intermodal transportation and transportation brokerage (Glenn Ferhribach Dep., p. 14) (APP0318) that is an owner of NACPC. (Fehribach Dep., p. 67; Mark George Dep., Exh. 28) (APP0327; APP0231-APP0233).

15. TCW is a motor carrier engaged in intermodal and domestic transportation (Scott George Dep., p. 13) that is an owner of NACPC. (Scott George Dep., p. 83; Mark George Dep., Exh. 29) (APP0368; APP0234).

16. Each member of NACPC owns a [REDACTED] interest in the company. (Mark George Dep., p. 135, ll. 5 – 8; Exh. 28) (APP0179; APP0231-APP0233).

ChassisLeaseCo LLC and Its Owners

17. [REDACTED]

[REDACTED]

[REDACTED].

18. The members of CLC are:

a. [REDACTED]

[REDACTED]

[REDACTED].

b. [REDACTED]

[REDACTED]

c. [REDACTED]

[REDACTED].

d. [REDACTED]

[REDACTED].

e. [REDACTED]

[REDACTED].

f. [REDACTED]

[REDACTED].

g. [REDACTED]

[REDACTED].

19. [REDACTED]

[REDACTED]

[REDACTED].

20. [REDACTED]

[REDACTED].

21. [REDACTED]

[REDACTED]

[REDACTED].

22. [REDACTED]

[REDACTED]

[REDACTED]

23. [REDACTED]

[REDACTED]

[REDACTED].

24. [REDACTED]

[REDACTED].

25. [REDACTED]

[REDACTED].

26. [REDACTED]

[REDACTED]

[REDACTED].

27. [REDACTED]

[REDACTED].

28. [REDACTED]

[REDACTED]

[REDACTED].

29. [REDACTED]
[REDACTED].

30. [REDACTED]
[REDACTED].

31. [REDACTED]
[REDACTED]
[REDACTED].

32. [REDACTED]
[REDACTED]
[REDACTED].

Intermodal Equipment Providers

33. Interpool, Inc. d/b/a TRAC Intermodal (“TRAC”) is an enterprise that has leased and rented chassis as an intermodal equipment provider (“IEP”). (STIP #188)

34. [REDACTED]
[REDACTED]
[REDACTED].

35. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

36. [REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

37. Direct ChassisLink Inc. (“DCLI”) is an enterprise that has leased and rented chassis as an IEP. (STIP #189)

38. [REDACTED]

[REDACTED]

[REDACTED].

39. [REDACTED]

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED].

40. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

41. Flexi-Van Leasing, Inc. (“Flexi-Van”) is an enterprise that has leased and rented chassis as an IEP. (STIP #190)

42. [REDACTED]

[REDACTED]

[REDACTED].

43. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

44. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

45. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

46. Usage of chassis in the POP is assigned to the IEP that has a contractual relationship with the ocean carrier whose container is being moved. (STIP #197)

OCEMA

47. Respondent Ocean Carrier Equipment Management Association Inc. (“OCEMA”) is a District of Columbia non-profit corporation created and established pursuant to FMC Agreement No. 011284, effective July 6, 1990, originally entitled the “Equipment Interchange Discussion Agreement.” (STIP #3)

48. Effective April 18, 2000, the Equipment Interchange Discussion Agreement was renamed the “Ocean Carrier Equipment Management Association.” (STIP #5)

49. In 2005, the OCEMA Agreement was amended to include establishing and overseeing the operation of the chassis pools managed by Consolidated Chassis Management, LLC (“CCM”). (STIP #6)

50. Effective October 5, 2005, FMC Agreement No. 011284-58 permitted OCEMA discussions and agreements in Article 5.8 to include the establishment of chassis pools, as well as their use. (STIP #7)

51. The current version of the OCEMA Agreement is No. 011284-083, effective September 9, 2020. (STIP #8)

52. OCEMA’s business address is 1200 19th Street, N.W., 3rd Floor, Washington, D.C. 20036. (STIP #9)

53. OCEMA’s Senior Steering Committee has been comprised of representatives of OCEMA members. (STIP #11)

54. OCEMA business and operating decisions are made by OCEMA’s Executive Committee, comprised of representatives of OCEMA members. (STIP #12)

Consolidated Chassis Management, LLC

55. CCM, its affiliates, and its affiliated pools are created pursuant to, and have operated pursuant to, the Consolidated Chassis Management Pool Agreement (“CCMP Agreement”), FMC Agreement No. 011962, the current version of which is FMC Agreement No. 011962-018, effective January 30, 2021. (STIP #14)

56. CCM is a Delaware limited liability company. CCM’s principal place of business is located at 500 International Drive, Suite 130, Budd Lake, NJ 07828. (STIP #15)

57. Parties to the CCMP Agreement include OCEMA and its members, as well as CCM and its affiliates. (STIP #16)

CMA-CGM

58. Respondent CMA CGM S.A. (“CMA”), conducting business in the United States through CMA CGM (America) LLC, is a French global ocean carrier company founded in 1978 and located at 4, Quai D’Arenc, P.O. Box 2409, 13215 Marseilles Cedex 02, France. CMA CGM (America) LLC’s U.S. office is located at 5701 Lake Wright Drive, Norfolk, VA 23502. (STIP #22)

59. CMA has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #33)

60. CMA’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by CMA. (STIP #34)

61. CMA also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable CMA tariffs. (STIP #35)

62. CMA CGM has offered open choice, i.e., choice without carrier approval, in CCM pools since late 2018. [REDACTED]

[REDACTED].

63. Prior to late 2018, CMA CGM offered choice with approval by CMA CGM and notice to its chassis provider. [REDACTED].

64. Interoperable pools can result in higher chassis costs for ocean carriers than single-provider pools. [REDACTED]

[REDACTED].

65. Single-provider pools do not always offer ocean carriers lower chassis costs than interoperable pools. [REDACTED].

66. There are many factors, in addition to cost, that influence a carrier's decision as to the source of chassis. [REDACTED].

67. There is no evidence in the record that CMA CGM denied a request for choice.

68. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

69. [REDACTED]

[REDACTED].

70. [REDACTED]

[REDACTED]

[REDACTED].

COSCO

71. COSCO, conducting business in the United States through COSCO Shipping (North America) Inc., is a Chinese global ocean carrier company founded in 1964 and located at No. 378 Dong Da Ming Road, Shanghai, 200080, People's Republic of China. COSCO's U.S. office is located at 100 Lighting Way, Secaucus, NJ 07094. (STIP #37).

72. COSCO has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #50).

73. COSCO's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by COSCO. (STIP #51).

74. COSCO also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable COSCO tariffs. (STIP #52).

75. COSCO has always permitted Choice upon request for MH moves in chassis pools where Choice is available. ([REDACTED] ;

<https://www.ccmpool.com/Membership/Chassis-Providers/> [REDACTED] .

76. [REDACTED]
[REDACTED] .

77. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] .

78. [REDACTED]
[REDACTED].

79. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

80. [REDACTED]
[REDACTED].

81. [REDACTED]
[REDACTED]
[REDACTED].

82. [REDACTED]
[REDACTED].

83. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

84. [REDACTED]
[REDACTED].

Evergreen

85. Respondent Evergreen Line Joint Service Agreement, FMC No. 011982
("Evergreen") is a joint service agreement between Evergreen Marine Corp. (Taiwan) Ltd., Italia
Marittima S.P.A., Evergreen Marine (Singapore) Pte Ltd, Evergreen Marine (UK) Ltd., and

Evergreen Marine (Hong Kong) Ltd., FMC Agreement No. 011982 and located at No. 163, Sec. 1, Hsin-Nan Road, Luchu Hsian, Taoyuan Hsien, 338, Taiwan. (STIP #54)

86. Evergreen has conducted business in the United States through Evergreen Shipping Agency (America) Corporation, located at One Evertrust Plaza, Jersey City, NJ 07302. (STIP #55)

87. Evergreen publishes tariffs for the transportation of cargo containers to and from ports and/or points in the United States. (STIP #62) The provisions of these tariffs are summarized in STIP #63-67.

88. [REDACTED]

[REDACTED]

[REDACTED]

89. Evergreen provides chassis to its customers for use by the customers' designated motor carriers moving the cargo of Evergreen's customers on an MH basis. (STIP #63 and 64)

90. If an Evergreen customer chooses to have its motor carrier use a chassis other than one provided by Evergreen for MH shipments, the customer and its motor carrier can use their own chassis or a chassis provided by an IEP selected by the motor carrier or the customer. (STIP #63-#65; [REDACTED])

91. If its customer wants Evergreen to provide the chassis for an MH movement, the customer pays Evergreen a Chassis Usage Charge. (STIP #63-65; [REDACTED])

[REDACTED]

92. If its customer pays a Chassis Usage Charge for an MH shipment, Evergreen makes the chassis available to the motor carrier free of charge for the day of delivery plus 4

business days, Saturdays, Sundays, holidays excluded. ([REDACTED], 1. 2; STIP #63 - 65; [REDACTED]).

93. [REDACTED]
[REDACTED].

94. The chassis provided by Evergreen to motor carriers, moving their customers' cargo on an MH basis, are interchanged pursuant to the terms of the Uniform Intermodal Interchange Agreement, Evergreen's addendum thereto and Evergreen's tariff. (STIP #63 - 65; [REDACTED]).

95. The only charge that Evergreen will potentially invoice to a motor carrier is for *per diem*, which is a charge that is assessed if the chassis is not returned by the motor carrier within the free time period described above. (STIP #63 - 65; [REDACTED]).

96. If the motor carrier does not return the chassis within the free time period, Evergreen assesses a per diem charge at a rate of \$20 per day, commencing the day after free time expires and running until the day that the chassis is returned. ([REDACTED]
[REDACTED] STIP #63 - 65).

97. Evidence in the record confirms that, on those occasions when Evergreen has charged per diem, the motor carrier marks up and invoices the per diem charge to its customer. ([REDACTED]).

98. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

99. [REDACTED]
[REDACTED].

100. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Hapag-Lloyd

101. Respondent Hapag-Lloyd AG (“Hapag-Lloyd”), conducting business in the United States through Hapag-Lloyd (America) LLC, is a German global container carrier company founded in 1970 and located at Ballindamm 25, 20095 Hamburg, Germany. Hapag-Lloyd (America) LLC’s U.S. address is 399 Hoes Lane, Piscataway, NJ 08854. (STIP #69)

102. Hapag-Lloyd supports Choice and has consistently supported Choice. ([REDACTED]
[REDACTED]).

103. Hapag-Lloyd has an established practice of approving all Choice requests from BCOs and motor carriers, or through requests routed through CCM. ([REDACTED]
[REDACTED]).

104. [REDACTED]
[REDACTED]

105. [REDACTED]
[REDACTED]) and there is no evidence in the record which shows that Hapag-Lloyd ever denied a Choice request. ([REDACTED])

106. [REDACTED]
[REDACTED]
[REDACTED].

107. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

108. [REDACTED]
[REDACTED]
[REDACTED].

109. [REDACTED]
[REDACTED]
[REDACTED].

110. [REDACTED]
[REDACTED].

111. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

112. [REDACTED]
[REDACTED].

113. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

114. [REDACTED]

HMM

115. Respondent HMM Co. Ltd. (“HMM”) is a South Korean global ocean carrier company founded in 1976 and located at 194 Yulgok-ro, Jogno-gu, Seoul, Korea. HMM has conducted business in the United States through Hyundai America Shipping Agency Inc., located at 222 Las Colinas Blvd. W, Suite 7400, Irving, TX 75039. (STIP #84)

116. HMM has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #95)

117. HMM’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by HMM. (STIP #96)

118. HMM also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable HMM tariffs. (STIP #97)

119. [REDACTED]

120. [REDACTED]

121. [REDACTED]

122.

123.

124.

125.

126.

Maersk

127. Respondent Maersk A/S (“Maersk”), conducting business in the United States through Maersk Agency U.S.A. Inc., is a Danish global ocean carrier company founded in 1904 and located at 50, Esplanaden, DK-1098 Copenhagen, Denmark. Maersk Agency U.S.A. Inc.’s U.S. office is located at 180 Park Avenue, Florham Park, NJ 07932. (STIP #99)

128. Maersk has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #110).

129. Maersk's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Maersk. (STIP #111)

130. Maersk also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Maersk tariffs. (STIP #112)

131. Maersk authorizes Choice by exception for motor carriers and BCOs in pools where Choice is available. ([REDACTED])

132. [REDACTED]
[REDACTED]
[REDACTED].

133. [REDACTED]
[REDACTED]
[REDACTED].

134. [REDACTED]
[REDACTED]
[REDACTED].

135. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

136. [REDACTED]
[REDACTED].

137. [REDACTED]

[REDACTED]

[REDACTED].

138. [REDACTED]

[REDACTED].

139. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

140. [REDACTED]

[REDACTED].

MSC

141. Respondent MSC Mediterranean Shipping Company S.A. (“MSC”), conducting business in the United States through Mediterranean Shipping Company (USA) Inc., is a global container shipping company founded in 1970 and headquartered at S.A. Chemin Rieu 12-14, 1208 Geneva, Switzerland. Mediterranean Shipping Company (USA) Inc.’s U.S. office is located at 420 5th Avenue, 8th Floor, New York, NY 10018. (STIP #114)

142. MSC provides chassis to its CH and MH customers under a business model in which MSC procures a chassis and then includes a chassis usage surcharge in its invoice to the Shipper. The relevant IEP with which MSC has a contractual relationship for such chassis usage then bills MSC for all such usage days. (STIP #125)

143. For import movements, the chassis surcharge is called a “Chassis Usage Charge” or “CUC.” For export movements, the chassis surcharge is called an “Export Chassis Usage” or “ECU.” (STIP #126)

144. The CUC and ECU charges are published by MSC in a tariff. (STIP #127)

145. MSC also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable MSC tariffs. (STIP #128)

146. Motor carriers which obtain chassis through MSC to transport its containers do not pay chassis usage charges. ([REDACTED]).

147. [REDACTED]
[REDACTED]
[REDACTED].

148. MSC makes chassis available to the motor carriers who transport containerized cargoes for its customers moving shipments on an MH basis, pursuant to the UIIA, MSC's UIIA addendum and MSC's tariff. ([REDACTED]).

149. Motor carriers receive the use of chassis for MH shipments free of charge for the day of delivery plus four business days (Saturdays, Sundays, and holidays excluded). ([REDACTED]
[REDACTED]).

150. If an MSC customer opts to have its motor carrier use a chassis other than one provided by MSC for an MH shipment, the customer and its motor carrier can use its own chassis or a chassis provided by an IEP and forego payment of the Chassis Usage Charge. ([REDACTED]).

151. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

152. [REDACTED].

ONE

153. Respondent Ocean Network Express Pte. Ltd. (“ONE”), conducting business in the United States through its general agent, Ocean Network Express (North America) Inc., is a global ocean carrier company founded in 2017, with global headquarters located at 7 Straits View, #16-01 Marina One East Tower, Singapore 018936. Ocean Network Express (North America) Inc.’s U.S. address is 8730 Stony Point Parkway, Suite 400, Richmond, VA 23235. (STIP #129)

154. ONE is jointly owned by the Japanese shipping companies Nippon Yusen Kaisha, Mitsui O.S.K. Lines Ltd., and Kawasaki Kisen Kaisha Ltd. (K Line) through Ocean Network Express Holdings Ltd, Japan. (STIP #130)

155. ONE publishes tariffs for transportation of cargo containers to and from ports and/or points in the United States. (STIP #137)

156. ONE’s tariffs contain port-to-port rates, under which ONE’s customer, such as a BCO or NVOCC, is responsible for arranging for and obtaining rail and/or motor carrier transportation between the port and the customer’s location. With respect to motor carrier transportation, this responsibility includes the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ONE. (STIP #138)

157. ONE’s tariffs also contain rates to/from inland intermodal terminals. When a rate applies to a U.S. destination intermodal terminal, ONE is responsible for arranging and obtaining rail and/or motor carrier transportation between the port and the inland intermodal terminal. Under such rates, ONE’s customer is responsible for arranging for and obtaining motor carrier transportation between the inland terminal and the final destination. This responsibility includes

the responsibility for obtaining chassis. Such container movements are classified as merchant haulage (MH) moves by ONE. (STIP #139)

158. ONE's tariffs also contain rates to/from a specific customer location, which are referred to as store-door rates. Under a store-door rate, ONE is responsible for arranging and obtaining rail and/or motor carrier transportation between a port or inland intermodal terminal and a customer's location, including payment to a chassis provider for the chassis used in such a move. Such container movements are classified as carrier haulage (CH) moves by ONE. (STIP #140)

159. ONE has customers who obtain ocean transportation of containers using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #141)

160. ONE's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by ONE. (STIP #142)

161. ONE also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable ONE tariffs. (STIP #143)

162. ONE's policy is to grant requests for Choice from motor carriers and BCOs.
(<https://www.ccmpool.com/Membership/Chassis-Providers/>)

163. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

164. [REDACTED]

[REDACTED]

[REDACTED]

165. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

166. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

167. [REDACTED]

[REDACTED]

[REDACTED]

168. [REDACTED]

[REDACTED]

[REDACTED]

169. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

170. [REDACTED]

[REDACTED]

Wan Hai

171. Respondent Wan Hai Lines Ltd (“Wan Hai”), conducting business in the United States through Wan Hai Lines (USA) Ltd., is a Taiwanese global ocean carrier company founded in 1965 and located at 10th Floor, No. 136, Sung Chiang Road, Taipei 10417, Taiwan. Wan Hai’s U.S. address is 301 E. Ocean Boulevard, #1650, Long Beach, CA 90802. (STIP #145)

172. Wan Hai has provided and continues to provide transportation of containers to and from the United States using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #155)

173. Wan Hai’s ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by Wan Hai. (STIP #156)

174. Wan Hai also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable Wan Hai tariffs. (STIP #157)

175. Prior to 2016, Wan Hai provided and paid for chassis for all CH and MH moves. ([REDACTED]).

176. Wan Hai grants blanket approval of Choice requests through direct notification by a motor carrier to its IEP, TRAC; and, if requests are received by Wan Hai, the requests are directed to TRAC for approval. ([REDACTED]).

177. [REDACTED]
[REDACTED].

178. Wan Hai permits Choice by motor carriers in the SACP subject to TRAC’s approval, which is regularly granted. ([REDACTED]).

179. [REDACTED]
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

180. [REDACTED]

[REDACTED].

181. [REDACTED]

[REDACTED]

[REDACTED].

Yang Ming

182. Respondent Yang Ming Marine Transport Corp. (“Yang Ming”) is a Taiwanese global ocean carrier company founded in 1972 and located at 271 Ming De 1st Road, Cidu District, Keelung 20646, Taiwan, Republic of China. Yang Ming has conducted business in the United States through Yang Ming (America) Corporation, whose office is located at One Newark Center, 1085 Raymond Boulevard, 9th Floor, Newark, NJ 07202. (STIP #159)

183. Yang Ming has a policy of approving all requests for Choice. ([REDACTED] [REDACTED]).

184. [REDACTED]

[REDACTED]

[REDACTED].

185. The record lacks any evidence demonstrating denial of Choice requests made to Yang Ming.

186. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

187. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

188. [REDACTED]

[REDACTED]

[REDACTED].

189. [REDACTED]

[REDACTED]

[REDACTED].

190. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

191. [REDACTED]

[REDACTED]

[REDACTED].

ZIM

192. Respondent ZIM Integrated Shipping Services (“ZIM”), conducting business in the United States through ZIM American Integrated Shipping Services Company, LLC is an Israeli global ocean carrier company founded in 1945, and located at 9 Andrei Sakharov St., “Matam” – Scientific Industries Center, P.O.B. 1723, Haifa 21016, Israel. ZIM American

Shipping Services Company, LLC's primary U.S. business address is 5801 Lake Wright Drive, Norfolk, VA 23502. (STIP #173)

193. ZIM has customers who obtain ocean transportation of containers using its port-to-port, inland intermodal, and store-door tariff rates. (STIP #184)

194. ZIM's ocean transportation, inland intermodal transportation, and store-door tariff rates are subject to rules tariffs issued by ZIM. (STIP #185)

195. ZIM also negotiates service contracts with its customers for the provision of its container transportation services. Such service contracts may modify the terms and conditions of the otherwise applicable ZIM tariffs. (STIP #186)

196. [REDACTED]

[REDACTED]

[REDACTED].

197. There is no evidence in the record demonstrating that ZIM ever denied any request for choice. ([REDACTED]).

198. [REDACTED]

[REDACTED]

[REDACTED]

199. [REDACTED]

[REDACTED].

200. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

201. [REDACTED]

202. [REDACTED]

Chassis Pools

203. An interoperable chassis pool cannot exist if the IEPs do not agree to be part of the pool. ([REDACTED]).

204. The IEPs, and not the ocean carriers, decide whether to join or withdraw from chassis pools. ([REDACTED]).

205. An IEP can withdraw its equipment from a chassis pool without the ocean carrier's permission. ([REDACTED]).

206. The ocean carrier has to follow the IEP to whatever pools the IEP chooses. ([REDACTED])

207. GCCP served ports and intermodal terminals, including Houston, El Paso, and New Orleans. (STIP #201)

208. On August 19, 2020, GCCP formally closed, and GCCP's contracts with chassis contributors and users terminated as of that date. (STIP #202)

209. COCP served intermodal terminals in the Midwest, including in Illinois, Indiana, and Ohio. (STIP #203)

210. On August 19, 2020, the COCP formally closed and COCP's contracts with chassis contributors and users terminated as of that date. (STIP #204)

211. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED].

CCMP Operations Manual

212. The current version of the CCM Pools LLC (CCMP) Operations Manual, is version 4.4 effective July 20, 2020. (APP1799-APP1855).

213. Section 5.5 of the CCM Pools LLC (CCMP) Operations Manual states: “Usage Days will be assigned by default to the User associated with eh Container Line Operator for the container loaded on a Chassis (i.e., to either the User itself or to the User for whom the Container Line Operator is a customer).”

214. Section 5.6 of the CCMP Operations Manual states: “In the event that there is no Customer associated with a move, Chassis usage will be assigned to the immediately preceding User. In the event a motor carrier Customer uses a Pool Chassis to move a container for which the Container Line Operator is not a designated Customer, usage will be assigned to the User for which the motor carrier is a Customer.

215. Section 5.7 of the CCMP Operations Manual states: “Notwithstanding Section 5.5, under the Choice Program, Usage Days may be directed to another User when the Container Line Operator and the User for whom the Container Line Operator is a Customer authorize a deviation from the default assignment. To utilize this program, the Container Line Operator must notify CCM that it allows exceptions: at the shipment level (based on booking or bill of lading reference); upon request and approval; based on the motor carrier (for merchant haulage moves);

or for all merchant haulage moves (provided the Container Line Operator provides CCM with access to shipment data sufficient to make such assignments).

216. Section 5.8 of the CCMP Operations Manual states: “If Container Line Operator allows Usage Days to be redirected on an exception basis and the specified criteria are met, the User will be determined through CCM’s chassis choice portal. In such instances, any on-terminal usage assigned following the loading of the Container Line Operator’s container under 5.12.1 shall be transferred to the User determined through the chassis choice portal.”

217. Section 5.9 of the CCMP Operations Manual states: “Exceptions shall be communicated to CCM in a format specified by CCM. Information indicating whether an exception was applicable to a specific movement must be communicate to CCM by the earlier of thirty (30) days after the beginning of usage or within seven (7) days of the return of a Chassis.”

Merchant Haulage Rates

218. DCLI’s published daily market rates for chassis rental are publicly available at <https://dcli.com/chassis-fleet/daily-market-rates/>

219. Flexi-Van’s published daily rates for chassis rental are publicly available at <https://flexivan.com/daily-rentals/>

220. NACPC’s published daily rates for chassis rental are publicly available at <https://www.nacpc.org/pricing/>

221. There is no evidence in the record relating to how DCLI, Flexi-Van or TRAC determine their daily rates for chassis rental.

222. Motor carriers enter into contracts with DCLI, Flexi-Van, TRAC and NACPC which charge lower chassis rental rates in exchange for contractual volume commitments by the

motor carrier. ([REDACTED]
[REDACTED]).

223. [REDACTED]

[REDACTED]

[REDACTED].

Lack of Harm

224. [REDACTED]

[REDACTED]

[REDACTED].

225. [REDACTED]

[REDACTED]

[REDACTED].

226. [REDACTED]

[REDACTED]

[REDACTED].

227. The [REDACTED] differential calculated by Mr. Manning does not constitute an overcharge by the ocean carrier Respondents.

228. NACPC presently contributes approximately 21,000 chassis to the SACP, MCWP and MWCP pools. (Manning Dep., p. 39, l. 12 - 40, l. 11) (APP0075-APP0076).

229. NACPC provides approximately 5% of the 400,000 – 500,000 chassis volume used by Mr. Manning in his damages calculation.

230. Motor carriers negotiate chassis usage rates with IEPs that are lower than the chassis usage rates charged by NACPC. ([REDACTED]

[REDACTED].

231. Complainant has not adduced evidence supporting the \$1.8 billion in damages alleged in paragraph 82 of the Complaint.

232. [REDACTED]

[REDACTED]
[REDACTED]).

233. [REDACTED]

[REDACTED]
[REDACTED].

234. [REDACTED]

[REDACTED].

235. [REDACTED]

[REDACTED].

236. [REDACTED]

[REDACTED]

237. [REDACTED]

[REDACTED]
[REDACTED]

238. [REDACTED]

[REDACTED]

239. There is no evidence in the record that the shipping public has complained about alleged overcharges for chassis usage.

240. There is no evidence in the record that the shipping public has been harmed by the alleged overcharges for chassis usage alleged in the Complaint.

Respectfully submitted,

COZEN O'CONNOR

HOLLAND & KNIGHT

By: /s/ Christopher Raleigh

By: /s/ Gerald Morrissey

Counsel for Respondents³
Wayne R. Rohde
Christopher Raleigh
Mark A. Rabinowitz
Kathryn Sobotta
1200 19th Street N.W., Suite #300
Washington, D.C. 20036
(202) 463-2507

Counsel for Respondent Hapag-Lloyd AG
Gerald Morrissey
Christopher Nolan
800 17th Street N.W., Suite 1100
Washington, D.C. 20006
(202) 469-5497

MANELLI SELTER PLLC

By: /s/ Deana Rose

Counsel for Respondent Yang Ming
Marine Transport Corporation
Deana E. Rose
1725 I Street NW.
Washington, D.C. 20006
(202) 261-1016

April 29, 2022

³ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation.

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